Federalist No. 51 & Brutus No. 1

Publius (James Madison) · February 6, 1788 & "Brutus" · October 18, 1787

Source: The Federalist No. 51 (Avalon Project, Yale Law School) and Brutus I, New-York Journal, 18 October 1787 (Constitution Society). Public domain. Non-contiguous passages are separated by [. . .]; shorter cuts inside a passage are marked with an ellipsis. 1787 spelling retained in Brutus.

> The ratification debate in print: Brutus (New-York Journal, 18 Oct. 1787) argues the proposed Constitution consolidates the thirteen states into a single government no free republic could safely govern; Publius (The Federalist No. 51, Feb. 1788) answers that dividing power between two governments and among three branches makes the danger manageable — "ambition must be made to counteract ambition."

The Federalist No. 51 — Publius (Madison), February 1788

But the great security against a gradual concentration of the several powers in the same department, consists in giving to those who administer each department the necessary constitutional means and personal motives to resist encroachments of the others. The provision for defense must in this, as in all other cases, be made commensurate to the danger of attack. Ambition must be made to counteract ambition. The interest of the man must be connected with the constitutional rights of the place. It may be a reflection on human nature, that such devices should be necessary to control the abuses of government. But what is government itself, but the greatest of all reflections on human nature? If men were angels, no government would be necessary. If angels were to govern men, neither external nor internal controls on government would be necessary. In framing a government which is to be administered by men over men, the great difficulty lies in this: you must first enable the government to control the governed; and in the next place oblige it to control itself.

[. . .]

In the compound republic of America, the power surrendered by the people is first divided between two distinct governments, and then the portion allotted to each subdivided among distinct and separate departments. Hence a double security arises to the rights of the people. The different governments will control each other, at the same time that each will be controlled by itself.

Brutus No. 1 — New-York Journal, 18 October 1787

This government is to possess absolute and uncontroulable power, legislative, executive and judicial, with respect to every object to which it extends, for by the last clause of section 8th, article 1st, it is declared "that the Congress shall have power to make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this constitution, in the government of the United States; or in any department or office thereof." … The government then, so far as it extends, is a complete one, and not a confederation.

[. . .]

But what is meant is, that the legislature of the United States are vested with the great and uncontroulable powers, of laying and collecting taxes, duties, imposts, and excises; of regulating trade, raising and supporting armies … and other general powers. And are by this clause invested with the power of making all laws, proper and necessary, for carrying all these into execution; and they may so exercise this power as entirely to annihilate all the state governments, and reduce this country to one single government.

[. . .]

If respect is to be paid to the opinion of the greatest and wisest men who have ever thought or wrote on the science of government, we shall be constrained to conclude, that a free republic cannot succeed over a country of such immense extent, containing such a number of inhabitants, and these encreasing in such rapid progression as that of the whole United States.